NewsBank inc.

Babylon Bee complaint alleges California law gives power to censor its content

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Christian satirical website the Babylon Bee joined a coalition of groups suing California to block a law they argue would subject their content to censorship.

In a Wednesday Substack post, CEO Seth Dillon said he filed the lawsuit saying the "unconstitutional" law largely violates the company's First Amendment rights.

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"It's a good thing when people are allowed to speak freely," Dillion wrote. "It's a bad thing when Big Tech and the government work together to decide what we're allowed to say."

Known as AB 587, the 2022 law requires social media companies to periodically report certain content to the government, including user comments that amount to "hate speech" and "disinformation." It also allows the state attorney general to fine companies for late or misrepresentative reports, though the first of such filings are not due until January 2024.

"Anything 'shared' on a platform is subject to AB 587," according to Dillon's 31-page complaint filed in federal district court. It furthers that the Golden State has long had an "outsized impact on public policy" and that the law forces out-of-state private sector companies to comply with its measures.

When Gov. Gavin Newsom (D) signed it into law last September, he accused social media companies of contributing to the spread of "hate and disinformation" in a press statement.

"Californians deserve to know how these platforms are impacting our public discourse, and this action brings much-needed transparency and accountability to the policies that shape the social media content we consume every day," Newsom added.

AB 587 passed with support from groups like the Anti-Defamation League. Its drafters planned the bill to serve as a transparency measure to "pull back the curtain and require tech companies to provide meaningful transparency into how they are shaping our public discourse," according to Assembly member Jesse Gabriel (D).

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The plaintiffs ultimately contend that the law "targets constitutionally protected speech," according to their complaint. Other litigants challenging the law include Minds, a small social media website promoting free speech, and podcaster Tim Pool.

The Washington Examiner contacted Dillon for response.

Original Location: Babylon Bee complaint alleges California law gives power to censor its content

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